

Kiran Singh v. State of U.P. and others

Allahabad High Court · Division Bench · 30 October 2025 · WRIT - C No. 11205 of 2025 · **Writ petition dismissed; mandamus for fresh connection refused.**

HEADNOTE

A landlord who consented to a tenant's electricity connection cannot compel a fresh connection at the same premises while the tenant's dues remain unpaid. Clause 4.3(f)(vi) of the U.P. Electricity Supply Code, 2005 requires the landlord to ensure payment of the tenant's electricity dues before vacation; until that duty is discharged, mandamus will not issue so as to prejudice recovery or let the landlord circumvent the Code.

FACTUAL SUMMARY

The petitioner is the landlord of residential premises let to Saurabh Singh and Sarvadev Singh. An electricity connection originally stood in her name; later, with her consent, a fresh connection was granted in the tenants' names. The tenants vacated on 15.10.2023 leaving dues outstanding. The distribution corporation refused to process the petitioner's application for a new connection because of those arrears. A representation was rejected on 05.05.2025. She sought mandamus, arguing that the tenants' dues could not deny her a fresh supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(vi)

landlord liability for tenant dues

HOLDING

Clause 4.3(f)(vi) of the U.P. Electricity Supply Code, 2005 fastens on the landlord a duty to ensure payment of all electricity dues of the tenant before the tenant vacates. Where the landlord consented to a connection in the tenant's name at premises owned by her, no writ of mandamus will issue to compel a fresh connection at the same premises unless that duty is first discharged; otherwise recovery would be prejudiced and the landlord would circumvent the Code. ¶ 8-10

PRINCIPLE TAGS

arrears-run-with-the-premises A landlord who consented to a tenant's electricity connection cannot compel a fresh connection at the same premises while the tenant's dues remain unpaid. Clause 4.3(f)(vi) of the U.P.. ¶ 8-10